

STATE OF NEW YORK

11323--A

IN ASSEMBLY

May 11, 2026

Introduced by COMMITTEE ON RULES -- (at request of M. of A. Rosenthal)
-- read once and referred to the Committee on Codes -- committee
discharged, bill amended, ordered reprinted as amended and recommitted
to said committee

AN ACT to amend the penal law, in relation to establishing the crimes of
benefiting from a labor trafficking venture, benefiting from a sex
trafficking venture and aggravated benefiting from a sex trafficking
venture; to amend the social services law, in relation to establishing
a right of action for victims of benefiting from a trafficking
venture; and to amend the civil practice law and rules and the judici-
ary law, in relation to reviving such actions otherwise barred by the
existing statute of limitations, granting trial preference to such
actions, and directing the chief administrator of the courts to
promulgate rules for the timely adjudication of certain revived
actions

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "trafficking survivor recovery and accountability act".
3 § 2. Legislative intent. The legislature finds that survivors of sexu-
4 al exploitation and trafficking, as well as labor trafficking, including
5 those induced through fraud, material misrepresentation, or knowing
6 concealment, and where the exploitation or trafficking was sustained by
7 third parties who derived financial, professional, or reputational bene-
8 fit from its continuation, have been systematically denied meaningful
9 civil redress under existing law, not because the underlying conduct was
10 lawful, but because the redress available to such survivors was frag-
11 mented across overlapping common-law theories of fraud, intentional
12 infliction of emotional distress, civil conspiracy, and aiding and abet-
13 ting tortious conduct, each subject to limitations periods that ran
14 before survivors were positioned, psychologically or practically, to
15 identify the conduct as actionable or to overcome the financial,
16 social, and evidentiary obstacles and age and power disparities to seek-
17 ing redress against the perpetrators and the networks that enabled or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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benefitted from their exploitation. Delayed disclosure in cases involving fraudulent inducement and third-party enabler networks often follow dependency relationships engineered through misrepresentation, financial and reputational coercion that persists long after the conduct itself, and the systematic insulation of beneficiary parties through corporate, fiduciary, and trust structures designed to defeat accountability. This act consolidates and clarifies remedies that existed at best only in principle by providing a defined statutory framework, a uniform burden of proof, and a bounded revival or retroactivity period in which survivors may seek redress against perpetrators, their enablers, and the estates and successor entities through which the proceeds of such conduct have been preserved. Civil provisions of this act are retroactive not only to recognize the harm done, and to deter future such harm to, sex trafficking victims, labor trafficking victims, and victims of sexual exploitation, but also to make possible the redress for injustices inflicted upon victims of sex trafficking, labor trafficking, and sexual exploitation who have suffered physical, psychological and other injuries and conditions, and who have for far too long been denied the compensation to which they were entitled because of prejudicial attitudes toward victims of sex trafficking, labor trafficking, and sexual exploitation. Criminal provisions of this act recognize that our current laws do not account for the networks and systems that allow for, benefit from, and perpetrate harm to victims of sex trafficking, labor trafficking, and sexual exploitation, and it is the legislature's intent that this act help deter and remediate the extreme harm done by sex trafficking, labor trafficking, and sexual exploitation.

§ 3. The penal law is amended by adding three new sections 135.35-a, 230.34-b, and 230.34-c to read as follows:

§ 135.35-a Benefiting from a labor trafficking venture.

1. A person is guilty of benefiting from a labor trafficking venture by obtaining anything of value due to such person participating in what such person knew or reasonably should have known was a labor trafficking venture.

2. For the purposes of this section:

(a) "labor trafficking venture" means any one person, individually, or two or more persons associated in fact, whether or not a legal entity, engaged in conduct which is a violation of paragraph (a) or (c) of subdivision three of section 135.35 of this article.

(b) "participating in" means to knowingly assist, support or facilitate a labor trafficking venture.

Benefiting from a labor trafficking venture is a class D felony.

§ 230.34-b Benefiting from a sex trafficking venture.

1. A person is guilty of benefiting from a sex trafficking venture by obtaining anything of value due to such person participating in what such person knew or reasonably should have known was a sex trafficking venture.

2. For the purposes of this section:

(a) "sex trafficking venture" means any one person, individually, or two or more persons associated in fact, whether or not a legal entity, engaged in conduct which is a violation of section 230.34 of this article other than paragraphs (a) and (c) of subdivision five of such section.

(b) "participating in" means to knowingly assist, support or facilitate a sex trafficking venture.

Benefiting from a sex trafficking venture is a class C felony.

§ 230.34-c Aggravated benefiting from a sex trafficking venture.

1 1. A person is guilty of aggravated benefiting from a sex trafficking
2 venture by obtaining anything of value due to such person participating
3 in what such person knew or reasonably should have known was a sex traf-
4 ficking venture.

5 2. For the purposes of this section:

6 (a) "sex trafficking venture" means any one person, individually, or
7 two or more persons associated in fact, whether or not a legal entity,
8 engaged in conduct which is a violation of paragraph (a) or (c) of
9 subdivision five of section 230.34 or 230.34-a of this article.

10 (b) "participating in" means to knowingly assist, support or facili-
11 tate a sex trafficking venture.

12 Aggravated benefiting from a sex trafficking venture is a class B
13 felony.

14 § 4. Subdivision (a) of section 483-aa of the social services law, as
15 added by chapter 74 of the laws of 2007, is amended to read as follows:

16 (a) "Human trafficking victim" means a person who is a victim of sex
17 trafficking as defined in section 230.34 of the penal law ~~[or]~~, a victim
18 of benefiting from a sex trafficking venture as defined in section
19 230.34-b of the penal law, a victim of aggravated benefiting from a sex
20 trafficking venture as defined in section 230.34-c of the penal law, a
21 victim of labor trafficking as defined in section 135.35 of the penal
22 law, or a victim of benefiting from a labor trafficking venture as
23 defined in section 135.35-a of the penal law.

24 § 5. Paragraph (i) of subdivision (c) of section 483-bb of the social
25 services law, as amended by chapter 311 of the laws of 2021, is amended
26 and two new paragraphs (viii) and (ix) are added to read as follows:

27 (i) (A) An individual who is a victim of the conduct prohibited by
28 section 230.33, 230.34, 230.34-a, 230.34-b, 230.34-c, 135.35, 135.35-a
29 or 135.37 of the penal law or a victim of conduct constituting sexual
30 exploitation by fraud may bring a civil action against the perpetrator
31 of such conduct or ~~[whoever knowingly advances or profits from, or~~
32 ~~whoever should have known he or she was advancing or profiting from, an~~
33 ~~act in violation of section 230.33, 230.34, 230.34-a, 135.35 or 135.37~~
34 ~~of the penal law to]~~ any person or entity, including but not limited to
35 an individual, corporation, partnership, trust, or estate, who or that
36 acts together or in concert with the perpetrator, finances or enables
37 the conduct, or who obtains anything of value from the conduct, whether
38 knowingly or negligently. The civil action may recover actual, compensa-
39 tory and punitive damages, injunctive relief, any combination of those
40 or any other appropriate relief, as well as reasonable attorney's fees.
41 Such damages shall not be subject to discharge in bankruptcy
42 proceedings. Such civil action may proceed regardless of whether the
43 defendant was charged or convicted of a criminal offense and shall be
44 determined under a preponderance of the evidence standard based on
45 conduct prohibited by the enumerated sections or described in this
46 subdivision.

47 (B) For purposes of this paragraph, the term "sexual exploitation by
48 fraud" shall mean inducing an individual through material false state-
49 ments, misstatements or omissions to engage in or continue to engage in
50 sexual acts by a person or entity that receives anything of value from,
51 in connection with, or arising out of those acts.

52 (C) For purposes of this paragraph, the term "anything of value"
53 includes but is not limited to money, financial benefit, property,
54 services, debt forgiveness, promises of compensation, business opportu-
55 nities, business or social networking opportunities, or any other tangi-
56 ble or intangible benefit.

1 (viii) In any action brought pursuant to this subdivision, the trier
2 of fact may award additional punitive damages upon a showing that the
3 defendant's conduct was willful, wanton, reckless, malicious, or in
4 conscious disregard of the rights and safety of the plaintiff.

5 (ix) Notwithstanding any other provision of law to the contrary:

6 (A) in no action brought pursuant to this subdivision shall the death
7 of the human trafficking victim or the sexual exploitation by fraud
8 victim bringing the action or the death of a person or dissolution of an
9 entity, including but not limited to corporations, partnerships, trusts,
10 or estates, against whom the action was brought be a defense against
11 such action.

12 (B) an action may be brought pursuant to this subdivision by the
13 personal representative, estate, successors, assignees, or distributees
14 of a human trafficking victim or a sexual exploitation by fraud victim.

15 (C) in any action brought pursuant to this subdivision against the
16 personal representative, estate, successors, assignees, or distributees
17 of a deceased person liable therefor, the trier of fact may award any
18 damages, including but not limited to punitive damages, permitted under
19 this subdivision.

20 § 6. The civil practice law and rules is amended by adding a new
21 section 214-k to read as follows:

22 § 214-k. Action by certain victims of trafficking. Notwithstanding
23 any provision of law which imposes a period of limitation to the contra-
24 ry and the provisions of any other law pertaining to the filing of a
25 notice of claim or a notice of intention to file a claim as a condition
26 precedent to commencement of an action or special proceeding, every
27 civil claim or cause of action brought against any party alleging inten-
28 tional or negligent acts or omissions by a person for physical, psycho-
29 logical, or other injury or condition suffered as a result of conduct
30 which would constitute benefiting from a sex trafficking venture or
31 aggravated benefiting from a sex trafficking venture as defined in arti-
32 cle two hundred thirty of the penal law, benefiting from a labor traf-
33 ficking venture as defined in article one hundred thirty-five of the
34 penal law, or is otherwise actionable pursuant to section four hundred
35 eighty-three-bb of the social services law, which is barred as of the
36 effective date of this section because the applicable period of limita-
37 tion has expired, and/or the plaintiff previously failed to file a
38 notice of claim or a notice of intention to file a claim, is hereby
39 revived, and action thereon may be commenced not earlier than one month
40 after, and not later than one year after the effective date of this
41 section. In any such claim or action, dismissal of a previous action,
42 ordered before the effective date of this section, on grounds that such
43 previous action was time barred, and/or for failure of a party to file a
44 notice of claim or a notice of intention to file a claim, shall not be
45 grounds for dismissal of a revival action pursuant to this section. No
46 civil claim or action brought against any party alleging intentional or
47 negligent acts or omission by a person for physical, psychological or
48 other injury or condition suffered as a result of conduct which would
49 constitute benefiting from a sex trafficking venture or aggravated bene-
50 fitting from a sex trafficking venture as defined in article two hundred
51 thirty of the penal law or from sexual exploitation by fraud defined in
52 section four hundred eighty-three-bb of the social services law shall be
53 dismissed on the ground that the conduct did not form the basis for a
54 civil claim or action at the time it was committed; provided, however,
55 it is commenced not earlier than one month after, and not later than one
56 year after the effective date of this section. The provisions of para-

1 graph (i) of subdivision (c) of section four hundred eighty-three-bb of
2 the social services law shall apply to all such claims and causes of
3 action asserted retroactively.

4 § 7. Paragraph 7 of subdivision (a) of rule 3403 of the civil practice
5 law and rules, as amended by chapter 203 of the laws of 2022, is amended
6 to read as follows:

7 7. any action which has been revived pursuant to section two hundred
8 fourteen-g [✗], two hundred fourteen-j or two hundred fourteen-k of
9 this chapter.

10 § 8. The judiciary law is amended by adding a new section 219-f to
11 read as follows:

12 § 219-f. Rules reviving certain actions; benefiting from a trafficking
13 venture and for other purposes. The chief administrator of the courts
14 shall promulgate rules for the timely adjudication of revived and
15 retroactively commenced actions brought pursuant to section two hundred
16 fourteen-k of the civil practice law and rules.

17 § 9. Severability clause. If any clause, sentence, paragraph, subdivi-
18 sion, section or part of this act shall be adjudged by any court of
19 competent jurisdiction to be invalid, such judgment shall not affect,
20 impair, or invalidate the remainder thereof, but shall be confined in
21 its operation to the clause, sentence, paragraph, subdivision, section
22 or part thereof directly involved in the controversy in which such judg-
23 ment shall have been rendered. It is hereby declared to be the intent of
24 the legislature that this act would have been enacted even if such
25 invalid provisions had not been included herein.

26 § 10. This act shall take effect immediately.